NON-DISCLOSURE AND PRIVACY AGREEMENT
(the “Agreement”)

This Agreement is entered into and becomes effective on the date the Contractor executes it (the “Effective Date”).

Atlas Capture LLC, a Wyoming limited liability company, with its principal place of business at 30 N Gould St Ste R, Sheridan, WY 82801, USA, email: team@atlascapture.io ("Atlas Capture" or the "Disclosing Party"),

and

the individual or entity identified in the signature block below (the "Receiving Party").

Atlas Capture and the Receiving Party are sometimes referred to individually as a "Party" and collectively as the "Parties."

PART A – NON-DISCLOSURE TERMS

1. Definition of Confidential Information

For purposes of this Agreement, "Confidential Information" shall include all non-public information or material, whether written, oral, electronic, visual, or in any other form, that has or could have commercial value or other utility in the business in which the Disclosing Party is engaged, including without limitation: business plans, operations, financial information, pricing, customer and partner information, processes, datasets, recordings, videos, images, audio, annotations, source code, software, models, algorithms, technical specifications, research, know-how, inventions, trade secrets, and any derivatives or improvements thereof.

Confidential Information shall be deemed confidential whether or not marked as "Confidential"; however, where practicable, the Disclosing Party may label or stamp written materials with the word "Confidential" or a similar warning. If Confidential Information is transmitted orally, the Disclosing Party shall promptly provide writing indicating that such oral communication constituted Confidential Information.

2. Exclusions from Confidential Information

Receiving Party's obligations under this Agreement do not extend to information that is:

(a) publicly known at the time of disclosure or subsequently becomes publicly known through no fault of the Receiving Party;

(b) discovered or created by the Receiving Party before disclosure by Disclosing Party;

(c) learned by the Receiving Party through legitimate means other than from the Disclosing Party or Disclosing Party's representatives; or

(d) disclosed by Receiving Party with Disclosing Party's prior written approval.

3. Obligations of Receiving Party

Receiving Party shall hold and maintain the Confidential Information in strictest confidence for the sole and exclusive benefit of the Disclosing Party. Receiving Party shall carefully restrict access to Confidential Information to employees, contractors and third parties as is reasonably required and shall require those persons to be bound by nondisclosure obligations at least as protective as those in this Agreement.

Receiving Party shall not, without the prior written approval of Disclosing Party, use for Receiving Party's benefit, publish, copy, or otherwise disclose to others, or permit the use by others for their benefit or to the detriment of Disclosing Party, any Confidential Information. Receiving Party shall use the Confidential Information solely for purposes expressly authorized in writing by the Disclosing Party and for no other purpose, including no use to compete with or replicate the Disclosing Party’s products, services, datasets, or operations.

Receiving Party shall not use the Confidential Information to circumvent or interfere with the Disclosing Party’s relationships with its partners, contractors, clients, recorders, or data sources, or to develop or assist in the development of competing products, services, or datasets, except to the extent such restriction is prohibited by applicable law.

Receiving Party shall return to Disclosing Party any and all records, notes, and other written, printed, electronic, or tangible materials in its possession pertaining to Confidential Information, or permanently destroy such materials (at Disclosing Party’s election), immediately if Disclosing Party requests it in writing, and shall certify such return or destruction upon request.

All Confidential Information and any derivatives, improvements, models, datasets, annotations, or other materials created using or derived from the Confidential Information shall remain the exclusive property of the Disclosing Party. Nothing in this Agreement grants any license or other rights, by implication or otherwise, to the Receiving Party, except as expressly authorized in writing by the Disclosing Party.

Receiving Party shall promptly notify the Disclosing Party upon becoming aware of any actual or suspected unauthorized use or disclosure of the Confidential Information.

Liquidated Damages

Any breach of this Agreement by the Receiving Party shall, to the extent permitted by applicable law, entitle the Disclosing Party to liquidated damages in the amount of **$25,000 USD per breach**, in addition to any and all forms of equitable relief available under applicable law.

Receiving Party acknowledges that said damages are intended as a reasonable pre-estimate of loss and not as a penalty. Where such liquidated damages are not enforceable under applicable law, the Disclosing Party shall instead be entitled to recover its actual damages, without limitation, in addition to any equitable relief.

Injunctive Relief

Receiving Party also acknowledges that any breach of this Agreement may give rise to irreparable injury to the Disclosing Party, which may not be adequately compensated by damages. Accordingly, in the event of a breach or threatened breach of this Agreement by Receiving Party, the Disclosing Party shall have, in addition to any remedies it may have at law, the right to an injunction or other equitable relief to prevent the violation of its rights hereunder. The Disclosing Party may seek such injunctive or equitable relief in any court of competent jurisdiction, in any country where a breach occurs or is threatened, notwithstanding the arbitration provisions of Section 9 below.

No Reverse Engineering; No AI / ML Use

Receiving Party shall not, and shall not permit any third party to, directly or indirectly:

- reverse-engineer, decompile, disassemble, or otherwise attempt to derive the source code, structure, ideas, know-how, or algorithms underlying any software, systems, models, tools, or technologies of the Disclosing Party; or

- input, upload, or otherwise provide any Confidential Information (including videos, images, audio, datasets, documents, code, specifications, or other materials) to any artificial intelligence, machine learning, large language model, data-analytics, or similar system for the purpose of training, fine-tuning, evaluating, or otherwise improving such system (except as expressly authorized in writing by the Disclosing Party).

Any permitted use of Confidential Information with AI or ML systems must be expressly approved in advance in writing by the Disclosing Party and shall remain subject to all confidentiality and security requirements in this Agreement.

4. Time Periods

The nondisclosure provisions of this Agreement shall survive the termination of this Agreement and Receiving Party's duty to hold Confidential Information in confidence shall remain in effect until the Confidential Information no longer qualifies as confidential or trade secret information under applicable law or until Disclosing Party sends Receiving Party written notice releasing Receiving Party from this Agreement, or **five (5) years** from the Effective Date, whichever occurs later. For Confidential Information that constitutes a trade secret, Receiving Party's duty to hold such information in confidence shall continue for so long as such information remains a trade secret under applicable law.

5. Relationships

Nothing contained in this Agreement shall be deemed to constitute either party a partner, joint venture or employee of the other party for any purpose.

6. Severability

If a court or arbitral tribunal finds any provision of this Agreement invalid or unenforceable, the remainder of this Agreement shall be interpreted so as best to affect the intent of the parties, and such provision shall be enforced to the maximum extent permissible under applicable law.

7. Integration

This Agreement expresses the complete understanding of the parties with respect to the subject matter and supersedes all prior proposals, agreements, representations, and understandings. This Agreement may not be amended except in writing signed (including electronically) by both parties.

For clarity, **this Agreement includes and incorporates by reference the Privacy Agreement set out in Part B below**, which governs the collection, use, and processing of Personal Data and Video Content by Atlas Capture. By signing this Agreement, the Receiving Party acknowledges and agrees to the Privacy Agreement in Part B.

8. Waiver

The failure to exercise any right provided in this Agreement shall not be a waiver of prior or subsequent rights. Any waiver of any provision of this Agreement will be effective only if in writing and signed by the waiving party.

9. Arbitration

If any dispute arises between the Parties relating to the application, interpretation, implementation or validity of this Agreement, the Parties agree to resolve the dispute by binding arbitration administered by the Singapore International Arbitration Centre (SIAC) in accordance with the SIAC Rules then in force. The parties agree that the SIAC Rules give the parties a fair opportunity to present their case and respond to the case of the other side.

The arbitration shall be held in Singapore, shall be conducted in English, and shall proceed before a single arbitrator appointed in accordance with the SIAC Rules. Judgment upon the award rendered by the arbitrator may be entered in any court having jurisdiction, including courts in any jurisdiction where a party or its assets are located.

10. Governing Law

This Agreement shall be governed by the laws of Singapore, without regard to its conflict of laws principles. The Parties acknowledge that, in addition to the arbitration provisions above, the Disclosing Party may seek to enforce this Agreement and any arbitral award in any court of competent jurisdiction in any country where a breach occurs or where a party or its assets are located.

11. Feedback and Suggestions

If the Receiving Party provides any ideas, suggestions, feedback, recommendations, or other input relating to the Disclosing Party's products, services, datasets, technologies, or business ("Feedback"), the Receiving Party agrees that:

- the Disclosing Party shall own all rights, title, and interest in and to such Feedback (excluding the Receiving Party's pre-existing intellectual property, if any); and

- the Disclosing Party shall be free to use, disclose, reproduce, license, distribute, and otherwise exploit such Feedback in any manner and for any purpose, without restriction and without any obligation, compensation, or attribution to the Receiving Party.

The Receiving Party waives any claim based on moral rights or similar theories arising from the Disclosing Party's use of Feedback, to the maximum extent permitted by applicable law.

12. Disclaimer of Warranties

All Confidential Information is provided by the Disclosing Party on an "as is" basis. The Disclosing Party makes no representations or warranties, express or implied, regarding the accuracy, completeness, non-infringement, merchantability, fitness for a particular purpose, or any other characteristic of the Confidential Information. The Receiving Party assumes all risk arising from its use of the Confidential Information, subject at all times to the restrictions in this Agreement.

13. Assignment

The Receiving Party may not assign, transfer, or delegate this Agreement, whether voluntarily, by operation of law, or otherwise, without the prior written consent of the Disclosing Party, and any purported assignment in violation of this section shall be null and void. The Disclosing Party may assign this Agreement, in whole or in part, without the consent of the Receiving Party, including in connection with a merger, acquisition, corporate reorganization, sale of assets, or similar transaction.

Subject to the foregoing, this Agreement shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

14. Export Control Compliance

The Receiving Party shall comply with all applicable export control, sanctions, and similar laws and regulations in connection with its access to and use of the Confidential Information, including, where applicable, the export control and sanctions laws of the United States, Singapore, the United Kingdom, the European Union, and any other relevant jurisdiction.

The Receiving Party shall not, directly or indirectly, export, re-export, transfer, or disclose any Confidential Information or any product, software, or technology derived from it:

- to any country, person, entity, or end user subject to export restrictions or sanctions; or
- for any use prohibited by applicable export control or sanctions laws,

without first obtaining any licenses or approvals required by such laws and regulations.

15. Execution; Electronic Signatures; Counterparts

This Agreement may be executed:

- by manual (wet-ink) signature;
- by electronic signature (including via e-signature platforms or other electronic means indicating an intent to sign); or
- in any combination of the foregoing,

and any such signature shall be deemed to have the same legal effect as a handwritten signature to the fullest extent permitted by applicable law.

This Agreement may be executed in counterparts (including electronic or scanned counterparts), each of which shall be deemed an original and all of which together shall constitute one and the same agreement.

PART B – PRIVACY AGREEMENT (INCORPORATED TERMS)

> **By signing this Agreement, the Receiving Party ("you") acknowledges, understands, and agrees to the Privacy Agreement in this Part B, which governs how Atlas Capture collects, uses, stores, shares, and retains your Personal Data and Video Content when you use the Atlas Capture app.**

> Where applicable data protection laws give you non-waivable rights (for example in Malaysia, the Philippines, Indonesia, Chile, Peru, Colombia, the United Arab Emirates, Saudi Arabia, or Qatar), those laws will prevail over any conflicting term in this Part B.

1. Introduction

Welcome to the Atlas Capture app (“App”). This Privacy Agreement (“Privacy Agreement”) explains how Atlas Capture (“Atlas Capture”, “we”, “us”, “our”) collects, uses, stores, and shares your information, including video content you record and submit and the personal information associated with your account.

By using the App and/or by signing this Agreement, you acknowledge that you have read and understood this Privacy Agreement and consent to the processing of your information as described here. If you do not agree, please do not use the App.

Where applicable data protection laws give you non-waivable rights (for example in Malaysia, the Philippines, Indonesia, Chile, Peru, Colombia, the United Arab Emirates, Saudi Arabia, or Qatar), those laws will prevail over any conflicting term in this Privacy Agreement.

2. Who We Are and How to Contact Us

Atlas Capture acts as the “data controller” for personal data processed through the App (meaning we determine how and why your personal data is processed).

- **Company**: Atlas Capture LLC
- **Email (general support)**: support@atlascapture.io
- **Privacy / Data Protection Officer (DPO) contact**: support@atlascapture.io

You may contact us at this address for any privacy questions or to exercise your rights.

3. What Data We Collect

For clarity, we distinguish between three categories of data:

- **“Personal Information” / “Personal Data”** – information that identifies you or can reasonably be linked to you (e.g., name, email, device identifiers, identifiable faces or voices in videos).
- **“Video Content”** – the raw video recordings and audio you submit through the App. Video Content may contain Personal Data (faces, voices, home interior, etc.).

- **“Derived / Anonymized Data”** – data generated from processing or analyzing Video Content or Personal Data that **no longer reasonably identifies you**, such as:
    - labels and annotations not tied to your identity;
    - statistical summaries and aggregates;
    - model weights and features used to train AI systems;
    - de-identified or blurred clips that cannot reasonably be linked back to you.

3.1 Video Content

When you use the App to record tasks (e.g., cleaning, organizing, home activities) and submit those videos, you agree to the following, except where local law grants you non-waivable rights:

- **License and Ownership Model**
    - You grant Atlas Capture a **perpetual, worldwide, irrevocable, transferable, sublicensable, royalty-free license** to use, copy, modify, analyze, annotate, combine with other data, create derivative works from, commercialize, sell, and license the Video Content for any lawful purpose, including training and improving AI and robotics models.
    - Video Content becomes part of our proprietary datasets. We may integrate it into long-lived AI models and data pipelines.
    - In countries where local law treats certain rights as non-transferable or grants mandatory erasure or other rights, we will honor those rights as required by law (see Section 9).

3.2 Personal Information

We may collect and process Personal Information such as:

- Email address
- Name or username (if provided)
- Device identifiers, IP address, and technical data (e.g., OS, app version)

- Payment / payout-related information if needed to process compensation or reimbursements (typically handled via third-party processors)

We use this Personal Information primarily to:

- Create and manage your account
- Communicate with you about the App, updates, and support
- Process payments, rewards, or reimbursements
- Enforce our terms and protect our services

3.3 Derived / Anonymized Data

We generate Derived / Anonymized Data by processing Video Content and Personal Information. Once data has been irreversibly anonymized so that it cannot reasonably be linked to you, it is **no longer treated as Personal Data**.

We may retain and use Derived / Anonymized Data indefinitely for any lawful purpose, including:

- training, evaluating, and improving AI and robotics models;
- safety, bias, and performance testing;
- research and analytics;
- commercialization, licensing, and sale to third parties.

Requests to delete Personal Information (see Section 9) apply to Personal Data and identifiable elements of Video Content, **but do not require us to delete or re-train away Derived / Anonymized Data and model weights that no longer identify you**, except where local law explicitly requires otherwise.

4. Household Members, Minors, and User Responsibility

4.1 Consent for Household Members

By agreeing to this Agreement and using the App, you confirm that:

- You have obtained consent from any other adults present in your household who may appear in Video Content; and

- Those individuals are aware of and consent to Atlas Capture's use of the content for commercial, research, and AI training purposes as described in this Privacy Agreement.

4.2 Minors

By using the App, you confirm that:

- You are above the legal age of majority in your region, or you have the consent of a parent or legal guardian to use the App; and

- You provide consent, or have obtained consent as required by local law, for any minors who may appear in Video Content, acknowledging that Atlas Capture will use this content for commercial, research, and AI training purposes.

4.3 User Responsibility and Indemnity

You are responsible for ensuring that:

- You have the right to record in the location where videos are captured; and

- All individuals captured in the videos have given any consent required under applicable law for recording and for Atlas Capture's use of the content.

You agree to indemnify and hold harmless Atlas Capture from claims arising from your failure to obtain such consents or from recordings made in violation of applicable law. This indemnity does not limit any non-waivable consumer rights you may have under local law.

5. Content Restrictions

By using the App, you agree **not** to submit Video Content that contains:

- Nudity or explicit sexual content

- Exploitative, abusive, or harassing content

- Illegal activities

- Other content prohibited by law or our guidelines

Atlas Capture may review, reject, or delete any content that violates these terms and may suspend or terminate your account. Where required by law, we may report certain content (e.g., serious illegal activity) to relevant authorities.

6. Purposes and Legal Bases for Use of Your Data

We use your data for the following purposes:

- To train, develop, and improve machine learning and robotics models
- To build, maintain, and improve AI datasets that may be **licensed or sold to third parties**
- To conduct research and product development
- To process payments, rewards, and reimbursements
- To operate, maintain, secure, and improve the App and our infrastructure
- To comply with legal obligations and enforce our terms and policies

We only process your data for the purposes listed and will not use it for unrelated purposes without your consent, unless required or permitted by law.

Depending on the laws in your country, we rely on one or more of the following legal bases to process your Personal Data:

- Your consent
- The necessity to perform a contract with you (e.g., providing the App and compensation)
- Our legitimate interests in developing and improving our products, ensuring security, and preventing fraud, balanced against your rights and freedoms
- Compliance with legal, regulatory, or law-enforcement obligations

7. Third-Party Use and Infrastructure

7.1 Third-Party Licensing and Use

Atlas Capture may license, sell, or otherwise monetize Video Content, Derived / Anonymized Data, and AI models by providing them to third parties for purposes such as training AI models and related research.

Once data or models are provided to a third party, that third party becomes responsible for its own compliance with applicable laws. We use contractual controls where appropriate, but to the fullest extent permitted by law, you release Atlas Capture from liability arising from third-party

use of such content and models. This release does not limit any non-waivable rights you have under local law.

7.2 Storage and Sub-Processors

We store and process data using secure third-party providers, including:

- **DigitalOcean** (e.g., Spaces in the NYC3 data center in New York, USA)
- **Cloudflare** (for content delivery network (CDN), security, and traffic routing services)

These providers use industry-standard security practices and offer contractual commitments consistent with major data protection frameworks (such as Standard Contractual Clauses where applicable).

We may engage additional sub-processors over time. We will ensure that they are bound by data protection obligations consistent with this Privacy Agreement and applicable law.

7.3 Security Measures

We implement technical and organizational measures to protect your data, including:

- Encryption of data in transit and at rest where appropriate
- Access controls and logging for systems handling Personal Data and Video Content
- Network and application security measures via providers such as Cloudflare
- Internal policies and training to limit access to authorized personnel only

8. International Data Transfers

Because our infrastructure and service providers may be located in different countries (including the United States), your data may be transferred to and processed in countries that may have different data protection laws than your home country.

Where required by law, we rely on appropriate safeguards for international transfers, such as:

- European Commission Standard Contractual Clauses or other recognized contractual mechanisms;
- Data Processing Agreements with our providers;

- Other mechanisms recognized by applicable law.

By using the App, you acknowledge and consent to the cross-border transfer of your data as described here, to the extent permitted by law. Where your local law requires additional safeguards or consent, we will implement those safeguards or seek such consent as needed.

9. Data Retention

9.1 Video Content

- We retain Video Content **for as long as necessary** for the purposes described in Section 6, including AI model training and improvement, security and fraud prevention, and legal compliance.

- Because AI models and datasets often require long-term availability for retraining, auditing, debugging, and safety, this may mean retention for an extended period tied to the life of our products and services.

- When Video Content is no longer required for these purposes, we will either:

    - delete it; or

    - irreversibly anonymize it so that it is no longer reasonably linked to an identifiable person.

Where applicable law (for example in Malaysia, the Philippines, Indonesia, Chile, Peru, Colombia, or certain Middle Eastern jurisdictions) requires that Personal Data **not be retained longer than necessary**, we will apply that principle by periodically reviewing our retention and deleting or anonymizing Personal Data when it is no longer needed for the purposes described.

9.2 Personal Information

- We retain Personal Information (such as your email address and account details) only for as long as necessary to:

    - manage your account;

    - provide support and communications;

    - comply with legal, tax, and regulatory requirements;

    - resolve disputes and enforce our agreements.

- When Personal Information is no longer needed, we delete or anonymize it in accordance with our retention policies and applicable law.

You may request deletion of Personal Information (for example, your email address) at any time by contacting support@atlascapture.io. We may retain certain information if we are legally required to do so, or where it is necessary to protect our rights (for example, records of payments).

9.3 Derived / Anonymized Data and Model Weights

When you exercise your rights to deletion or erasure (where available under local law), we will:

- delete or irreversibly anonymize Personal Data and identifiable elements of Video Content relating to you, **to the extent required by law and technically feasible**; but

- **we may continue to retain and use Derived / Anonymized Data and model weights that no longer reasonably identify you**.

This means, for example, that we do not re-train or delete AI models solely because they were trained on data that previously included your Personal Data, provided that the model can no longer reasonably be used to identify you. Where local law explicitly requires a different approach, we will comply with those legal requirements.

10. Your Privacy Rights

Depending on where you live and the laws that apply, you may have some or all of the following rights over your Personal Data:

- **Right to be informed** – to receive clear information about how we use your data (this Privacy Agreement is part of that).

- **Right of access** – to request a copy of Personal Data we hold about you.

- **Right to rectification / correction** – to request that we correct inaccurate or incomplete Personal Data.

- **Right to deletion / erasure / cancellation** – in certain circumstances, to request deletion or anonymization of your Personal Data and identifiable elements of Video Content.

- **Right to restrict processing** – to ask us to limit how we use your Personal Data in specific situations.

- **Right to object** – to object to certain types of processing (for example, where we rely on legitimate interests).

- **Right to data portability** – to receive certain Personal Data in a structured, commonly used, machine-readable format and to transmit it to another controller, where technically feasible.

- **Right to withdraw consent** – where processing is based on your consent, you may withdraw that consent at any time.

- **Right to complain to a regulator** – to lodge a complaint with your local data protection authority if you believe your rights have been violated.

These rights may be subject to limitations and exceptions under applicable law. For example, we may not be required to delete data that we must keep for legal reasons or that has been irreversibly anonymized.

10.1 Special Notice for Certain Countries

If you are located in **Malaysia, the Philippines, Indonesia, Chile, Peru, Colombia, the United Arab Emirates, Saudi Arabia, or Qatar**, your local laws may grant you some or all of the following non-waivable rights:

- To be informed about the legal basis and purposes for processing your Personal Data;

- To access, rectify, and in some cases delete or cancel your Personal Data;

- To restrict or object to certain processing activities;

- To request data portability in specific circumstances;

- To not be subject solely to automated decisions that significantly affect you (where applicable);

- To file a complaint with your national data protection authority or equivalent regulator.

Where these laws apply, Atlas Capture will honor these rights even if other parts of this Agreement say otherwise. If a term in this Agreement conflicts with mandatory local law, the local law will prevail.

10.2 How to Exercise Your Rights

You can exercise your rights by contacting us at:

- **Email**: support@atlascapture.io

Please include enough information for us to verify your identity and understand your request. We may ask for additional information if needed to protect your account and data.

11. Liability

To the fullest extent permitted by law:

- Atlas Capture is not responsible for your failure to obtain consent from individuals who appear in your videos; and

- Atlas Capture is not responsible for how third parties use data after we have lawfully licensed or sold it to them, although we will take reasonable steps to contractually require them to comply with applicable laws.

Nothing in this Privacy Agreement is intended to exclude or limit any rights you have under mandatory consumer or data protection laws in your jurisdiction.

12. Changes to This Privacy Agreement

We may update this Privacy Agreement from time to time to reflect changes in our practices, technologies, or legal obligations. When we make material changes, we will take appropriate steps to notify you (for example, by updating the “last updated” date, sending an in-app notice, or emailing you).

Your continued use of the App after an update means you accept the revised Privacy Agreement.

13. Contact Information

If you have any questions about this Privacy Agreement or how we handle your data, or if you wish to exercise your rights, please contact us at:

Atlas Capture LLC
Email: support@atlascapture.io

SIGNATURES

IN WITNESS WHEREOF, the Receiving Party has executed this Non-Disclosure and Privacy Agreement as of the Effective Date first written above, and acknowledges and agrees to both **Part A (Non-Disclosure Terms)** and **Part B (Privacy Agreement)**.

RECEIVING PARTY

Name: _____

Date: _____

Signature: _____